# E1 UK GDPR and special category data in HR

Personal and special category data, lawful bases for talent data, Article 9 conditions, appropriate policy documents and DPIA screening.

## E1-L1 Personal data, special category data and the two-part test

Classify each attribute by what it reveals. Keep the special categories and the protected characteristics as two separate fields, and treat inferences as data.

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| **The nine special categories** | Racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic, biometric (to identify), health, sex life, sexual orientation. |
| **Is an inferred special category special category data?** | Yes. A model that infers health or ethnicity processes special category data. |
| **Age and sex** | Protected characteristics under the Equality Act 2010. Not special categories. |
| **The two-part test** | An Article 6 lawful basis for all personal data, plus an Article 9 condition for special category data. |

## E1-L2 A lawful basis for each use of talent data

Give each purpose its own lawful basis, avoid consent for workers, record a legitimate interests assessment for each use of legitimate interests, and keep only the fields each purpose needs.

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| **The six lawful bases** | Consent, contract, legal obligation, vital interests, public task, legitimate interests. |
| **Consent for employee data** | Rarely appropriate. The power imbalance makes it hard to give freely. Use another basis. |
| **Legitimate interests assessment** | Purpose, necessity, balancing, recorded before processing starts. |
| **Purpose limitation** | A basis covers the purposes you specified. A new purpose, such as an attrition model, needs its own check. |
| **Recognised legitimate interests** | Added by the Data (Use and Access) Act 2025, in force 5 February 2026. A fixed list of purposes with no balancing test. Not for commercial uses. |

## E1-L3 Article 9 conditions, policy documents and DPIA screening in HR

Pair each Article 9 condition with its Schedule 1 condition and an appropriate policy document, keep monitoring data away from individual decisions, and screen every new use for a DPIA.

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| **Employment condition in the UK** | Article 9(2)(b) plus Schedule 1, Part 1, paragraph 1 of the DPA 2018, with an appropriate policy document. |
| **Diversity monitoring** | Article 9(2)(g) plus Schedule 1 paragraph 8, equality of opportunity or treatment. Never for decisions about one person. |
| **Appropriate policy document** | Names the Schedule 1 condition, how you meet the principles, and retention and erasure. One APD can cover several purposes. |

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| **When a DPIA is mandatory** | Before high-risk processing, always for large-scale special category data and extensive profiling with significant effects. Consult the ICO if high risk remains. |